(304)

NATIONAL COMPANY LAW TRIBUNAL
DIVISION BENCH – II
CHENNAI

ATTENDANCE CUM ORDER SHEET OF THE HEARING OF CHENNAI BENCH, CHENNAI NATIONAL COMPANY LAW TRIBUNAL, HELD ON 13-01-2022 AT 12:00 P.M THROUGH VIDEO CONFERENCING:

PRESENT: JUSTICE (RETD.) SMT. S. RAMATHILAGAM, MEMBER (JUDICIAL)
SHRI B. ANIL KUMAR, MEMBER (TECHNICAL)

APPLICATION NUMBER	**: CP(CAA)/58/CHE/2021 IN**
PETITION NUMBER	**: CA/772/CAA/2020**
NAME OF THE PETITIONER	**: Sri Hari Vallabhaa Enterprises & Investments Pvt Ltd**
NAME OF THE RESPONDENTS	**: Dhanvarsha Enterprises & Investments Pvt Ltd**
UNDER SECTION	**: Sec 230-232 of CA, 2013**

IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH – II, CHENNAI

CP(CAA)58(CHE)/2021
In
CA/772/CAA/2020

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of *Scheme of Amalgamation*
of

M/s. Sri Hari Vallabhaa Enterprises & Investments Private Limited

... Transferor Company

AND
M/s. Dhanvarsha Enterprises & Investments Private Limited

... Transferee Company

AND
Their Respective Shareholders And Creditors

Order Pronounced on 13th January 2022

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Justice (Retd) S.RAMATHILAGAM, MEMBER (JUDICIAL)
ANIL KUMAR B, MEMBER (TECHNICAL)

For Petitioners: P. Sriram, PCS

ORDER:

Per: **JUSTICE (RETD.) S. RAMATHILAGAM, MEMBER (JUDICIAL)**

These Company Petition filed by the Petitioner Company is coming before us for admission and for fixing a date of hearing of the main Company Petition as well as for a direction in relation to publication in press to be effected and notices to be issued to the authorities concerned in relation to date of hearing of the Petition

and calling for the objections, if any, to the Scheme of Amalgamation (hereinafter for brevity referred to as "SCHEME") contemplated between the Petitioner Companies. From the records, it is seen that the First Motion Application vide CA/772/CAA/2020 was filed by the Petitioner Companies seeking directions for dispensation of the meeting of the Equity Shareholders and Unsecured Creditors of the Transferor and the Transferee Company based on such applications moved under Sections 230-232 of the Companies Act, 2013,(the 'Act') directions were issued by this Tribunal vide order dated 22.09.2021, dispensing with the meetings.

2. Subsequent to the order and upon compliance, now this petition on second motion filed on 29.10.2021 is coming up before us for fixing a date of hearing as well as for other consequential directions in terms of provisions of Sections 230 to 232 of Companies Act, 2013 read with Rule 16 of the Companies (Compromise, Arrangements and Amalgamation) Rules, 2016, brought into effect and on and from 15.12.2016 and it is now hereby ordered as follows:-

(i) The date of hearing of the Petition filed by the Petitioners for the sanction of the Scheme is fixed on **23rd February 2022**.

(ii) Notice of the hearing shall be advertised in the newspapers viz., the "Business Standard" (English, All India edition) and "Makkal

Kural" (Tamil, Tamil Nadu edition) not less than 10 days before the aforesaid date fixed for hearing.

(iii) In addition to the above public notice, each of the Petitioners shall serve the notice of the Petition on the following Authorities namely, (a) Central Government through the office of the Regional Director (Southern Region), Ministry of Corporate Affairs (MCA) (b) Registrar of Companies, Chennai, MCA (c) the Income Tax Department of the office having jurisdiction over the respective companies indicating specifically their PAN Nos. in the communication, (d) Official Liquidator, (e) The Reserve Bank of India and other sectoral regulators, if any, who may govern the working of the respective companies involved in the Scheme atleast 30 days before the date fixed for hearing of the above Petition.

(iv) Further, notice shall also be served to Objector(s) or to their representative, if any, as contemplated under Sub-Section (4) of Section 230 of the Act who may have made representation and who have desired to be heard in their representation along with a copy of the Petition and the Annexures filed therewith at least 15 days before the date fixed for hearing.

(v) The Petitioners shall (7 days before the date of hearing of the Petition), file an affidavit of service in relation to paper publication effected as well as service of notices on the Authorities specified above.

(vi) Objections, if any, to the Scheme contemplated by the authorities to whom notices have been given on or before the date of hearing fixed herein may be filed, failing which it will be considered that there is no objection to the approval of the Scheme on the part of

the authorities by this Tribunal and subject to other condition being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder.

(vii) The Petitioner Companies shall individually comply with proviso to sub section (3) of Section 232 or proviso to sub section (7) of Section 230, as may be applicable under the circumstances on or before the date fixed for hearing by filing the certificate of Company's auditor.

(viii) The next date of hearing of the Petition shall be on **23rd February 2022** for the consideration of the approval of the Scheme as contemplated among the Petitioner Companies.

-Sd-
B. ANIL KUMAR
MEMBER (TECHNICAL)

-Sd-
Justice (Retd.) S. RAMATHILAGAM
MEMBER (JUDICIAL)

Mohanapriya